

Affirmed on the Reasons Below: Appellate Review in 15,383 Published Saudi Commercial Judgments

Abdullah Almohammed

Independent Researcher

`abdullah.m.almohammed@gmail.com`

ORCID: 0009-0001-0832-0995

Abstract

Saudi commercial judgments are published with the appellate decision attached to the judgment it reviews, giving 13,924 matched pairs of the same dispute at two levels. 74.4 per cent of appellate judgments give no reasons of their own, affirming on the reasons below; whether a circuit writes is not independent of what it decides, rising from 26.2 per cent when it affirms to 34.3 when it reverses. Of appeals reaching the merits, 10.8 per cent disturb the judgment. A logistic model on the 9,563 decided between 1439 and 1444 — the window in which the record is mature enough to read — finds the procedural share of a judgment's own citations the strongest protection against disturbance (odds ratio 0.74), while its length, its citation count and whether it wrote reasons predict nothing.

Keywords: appellate review; judicial reason-giving; empirical legal studies; court administration; Saudi Arabia

1 Introduction

An appeal is studied where appellate decisions are digitised, which in practice has meant the United States and a handful of other common-law systems. The second instance elsewhere is known largely through court statistics: how many appeals were brought, how many succeeded. What the appellate court actually wrote, set beside what the court below wrote in the same dispute, is rarely available at scale in any jurisdiction, because the two documents live in different places.

In Saudi Arabia they live in the same record. The Ministry of Justice publishes commercial judgments

in full text, and where a case went up, the appellate decision is published attached to the judgment it reviews. That yields 13,924 matched pairs — the same dispute seen twice — inside a corpus of 50,666 judgments, with a further 1,459 appellate decisions published alone. Nothing about the pairing was designed for research; it is a by-product of how the publisher stores a case file. But it removes the objection that defeats most comparisons between levels, which is that the cases differ. Here they do not differ. They are the same cases.

Three things follow, and the first is about the institution rather than any case. 74.4 per cent of appellate judgments in this corpus give no reasons of their own: they affirm on the reasons below, in the formula *mahmulan ‘ala asbabih*. The second instance therefore adds its own statement of reasoning to the public record in about one appeal in four. Whether it does so is not independent of what it decides — circuits wrote their own reasons in 26.2 per cent of affirmances and 34.3 per cent of reversals — which matters both as a finding and as a constraint on the third result below.

Second, of the appeals that reached the merits, 10.8 per cent disturbed the judgment: reversed it, replaced it with a fresh judgment, or varied it. The rest affirmed. A further 14.7 per cent of all appellate decisions never reached the merits at all, failing at the threshold, and are excluded from that rate rather than counted as affirmances, because an inadmissible objection says nothing about whether the judgment below was sound.

Third, a logistic model asks what separates the judgments that were disturbed from those that survived, using only what can be read from the first-instance document. On the 9,563 decided between 1439 and 1444, the strongest protection is the procedural share of a judgment’s own statutory citations (odds ratio 0.74, $p < .001$). A judgment resting on the law of procedure is harder to disturb than one resting on the law of obligations. Its length, the number of instruments it cites, and whether it wrote its own reasons predict nothing at all.

Two methodological points are reported rather than assumed. The appellate disposition is read from the operative part of the appellate document and nowhere else, because an appellate recital narrates the history of the case and a pattern applied to the whole document reads an earlier affirmance as this court’s ruling; the classifier was corrected four times against hand-read samples before it was used. And the year in which a judgment was given cannot be read across the whole span: a recent judgment appears here with an appellate decision only if the appeal was both brought and decided before the corpus was collected, so the disturbed rate falls from 10.8 per cent in the mature years to almost nothing in the last of them. The window is therefore an argument to the model rather than a silent assumption, and the article reports the mature one.

2 Related work

What an appeal is for. The economic account treats the appeal as a device for correcting error at a cost, in which the party who lost has private information about whether the decision was wrong and the system relies on that information to select the cases worth reviewing (Shavell 1995). The account predicts a low disturbance rate among the appeals that are brought, since litigants who know they were rightly beaten should not appeal; what it does not predict is which surviving judgments differ from those overturned, which is an empirical question this corpus can answer directly.

Measuring appellate outcomes. The empirical literature on appeal rates and outcomes is built largely on United States federal and state court statistics, and is centrally concerned with who wins on appeal and why plaintiffs do worse there than at trial (Eisenberg 2004). That work reads outcomes from docket records: the appellate decision is a category rather than a text. This article reads the text, which permits questions a docket cannot answer — whether the appellate court reasoned at all, and what it cited when it did — at the price of being confined to what one publisher publishes.

Reason-giving, and its limits. That courts should give reasons is among the least controversial propositions in procedural theory, and among the least absolute in practice. Cohen (2015) sets out the values that pull against it — efficiency, sincerity, and the risk of guidance a court is not ready to give — and shows common-law and civil-law systems converging on similar compromises. Affirming on the reasons below is one such compromise, and a defensible one: reasons adopted are reasons given. Whether a court adopts or writes is nevertheless observable, and the rate at which the second instance writes has not been measured for this jurisdiction. It is measured here.

The filters between a dispute and this dataset. Two selection problems bound everything below and cannot be removed by better extraction. Cases that settle never produce a judgment, and settled disputes differ systematically from tried ones (Priest and Klein 1984); of the judgments given, publication is a second filter, and published and unpublished decisions have been shown to differ in kind rather than merely in number (Siegelman and Donohue 1990). A third filter is specific to appeals and is the more binding here: a judgment enters this analysis only if it was appealed. Nothing in what follows describes judgments that no one challenged.

The jurisdiction. Scholarship on Saudi law has been overwhelmingly doctrinal and institutional, and until recently had little else to work with; Vogel (2000) remains the standard English-language treatment

of the courts, written before judgments were published at scale. The commercial courts whose work this article measures were reorganised under a new law in 2020, and the corpus is dominated by the years since.

3 Data

3.1 A record that carries both levels

3.2 What the published record is

4 Method

4.1 Reading the appellate disposition

4.2 Whether the appeal reasoned

4.3 Modelling disturbance

5 Results

5.1 What appeals do

5.2 Reason-giving at the second instance

5.3 Reasoning compared, where both levels reasoned

5.4 What predicts disturbance

6 Threats to validity

7 Discussion

8 Conclusion

References

Cohen, Mathilde. 2015. “When Judges Have Reasons Not to Give Reasons: A Comparative Law Approach.” *Washington and Lee Law Review* 72(2): 483.

- Eisenberg, Theodore. 2004. "Appeal Rates and Outcomes in Tried and Nontried Cases: Further Exploration of Anti-Plaintiff Appellate Outcomes." *Journal of Empirical Legal Studies* 1(3): 659–688.
- Priest, George L., and Benjamin Klein. 1984. "The Selection of Disputes for Litigation." *Journal of Legal Studies* 13(1): 1–55.
- Shavell, Steven. 1995. "The Appeals Process as a Means of Error Correction." *Journal of Legal Studies* 24(2): 379–426.
- Siegelman, Peter, and John J. Donohue III. 1990. "Studying the Iceberg from Its Tip: A Comparison of Published and Unpublished Employment Discrimination Cases." *Law & Society Review* 24(5): 1133–1170.
- Vogel, Frank E. 2000. *Islamic Law and Legal System: Studies of Saudi Arabia*. Leiden: Brill.

Availability of data and code

Declarations